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Tentative Ruling

Re: ***Mejia v. Poindexter Nut Company, Inc.***
Superior Court Case No. 23CECG03574

Hearing Date: August 13, 2026 (Dept. 503)

Motion: By Defendant Poindexter Nut Company, Inc.'s Counsel to be
Relieved as Counsel

Tentative Ruling:

To deny without prejudice. (Cal. Rules of Ct., Rule 3.1362.)

Explanation:

Counsel for defendant Poindexter Nut Company, Inc. ("Counsel") has moved to be relieved as counsel of defendant Poindexter Nut Company, Inc.

"A notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel - Civil (form MC-051)." (Cal. Rules of Ct., Rule 3.1362(a).) "Notwithstanding any other rule of court, no memorandum is required to be filed or served with a motion to be relieved as counsel." (*Id.*, Rule 3.1362(b).) "The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel - Civil (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (*Id.*, Rule 3.1362(c).) "The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel-Civil (form MC-053) and must be lodged with the court with the moving papers." (*Id.*, Rule 3.1362(e).)

Forms MC-051, MC-052, and MC-053 must be used for a motion to be relieved as counsel. Counsel did not use those forms. Accordingly, the motion to be relieved as counsel is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/10/2026.
(Judge's initials) (Date)

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Tentative Ruling

Re:

Galvan v. City of Clovis
Superior Court Case No. 24CECG05613

Hearing Date:

August 13, 2026 (Dept. 503)

Motion:

By Plaintiff's Counsel to Withdraw
By Defendant City of Clovis for Summary Judgment

Tentative Ruling:

To continue both motions to Tuesday, September 8, 2026 at 3:30 p.m. in Department 503. Plaintiff's counsel shall refile the motion to withdraw on the mandatory Judicial Council forms, along with a supplemental declaration more clearly explaining counsel's efforts to find locate a personal representative or successor in interest.

Explanation:

Set concurrently are two motions – one by the City of Clovis for summary judgment, and another by plaintiff's counsel to withdraw. The motion for summary judgment is unopposed, but only because plaintiff has passed away. Because the plaintiff has passed, counsel seeks to withdraw, having no client.

Regarding the motion to withdraw, the court initially notes that the moving papers are not filed on the required Judicial Council forms. (See Cal. Rules of Court, rule 3.162(a), (c).) These forms must be used.

Ordinarily the notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case. Counsel must confirm the last known address for service. (Cal. Rules of Court, rule 3.162(d).) Obviously this case presents a different situation, with plaintiff having passed away. Service on a deceased client is not possible. However, before granting the motion to withdraw or ruling on the motion for summary judgment, the court would like to see evidence of plaintiff's death (death certificate if it can be obtained), so as to excuse counsel from the requirement of serving the client and confirming their last known address.

Counsel's declaration is somewhat ambiguous with regards to the efforts made to determine if there is an heir or successor in interest to substitute as plaintiff and carry on this action. "A pending action or proceeding does not abate by the death of a party if the cause of action survives." (Code Civ. Proc., § 377.21.) "A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest, subject to Chapter 1 (commencing with Section 7000) of Part 1 of Division 7 of the Probate Code, and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.30.) If there is no personal representative, the action may be maintained by the decedent's "successors in interest" (persons entitled to inherit the claim). (Code Civ. Proc., §§ 377.30, 377.34.)

Counsel states that he was informed of plaintiff's death by his stepmother (and designated emergency contact), Rita Bonilla. (Saleh Decl., ¶ 6.) Counsel has had continued contact with Ms. Bonilla. (Saleh Decl., ¶ 7.) Counsel states that "Plaintiff's death has been confirmed," but he does not know the date. (Saleh Decl., ¶ 12.) He states that his "office continues to make reasonable efforts to obtain documentation concerning Plaintiff's death, including a certified death certificate, if available." (Saleh Decl., ¶ 13.) Counsel states that he is "informed and believe[s] that no executor, administrator, personal representative, or successor-in-interest has been appointed or otherwise identified." (Saleh Decl., ¶ 9.) This is the point on which the court requests elaboration. Counsel shall continue to seek to identify an heir or successor-in-interest, and clearly explain to the court what efforts have been made in a supplemental declaration. Once the court is satisfied that there is no client to carry on this action, the court will grant the motion to withdraw and rule on the motion for summary judgment.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/10/2026 .
(Judge's initials) (Date)